



Appeal Decision

Site visit made on 2 July 2026

by N Unwin BSc (hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 14 September 2026

Appeal Ref: 6007163

Prince William Inn, Beacon Lane, Dalton, Lancashire WN8 7RU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Richard Lowe of Cuerden Developments against the decision of West Lancashire Borough Council.
 - The application Ref is 2024/0224/FUL.
 - The development proposed is described as the: conversion and restoration of the former Prince William public house to form a single dwelling. Demolition of existing structures and re-use of volume to form a single detached dwelling on land formerly used as a beer garden/children's play area.
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Decision

1. The appeal is allowed and planning permission is granted for the conversion and restoration of the former Prince William public house to form a single dwelling. Demolition of existing structures and re-use of volume to form a single detached dwelling on land formerly used as a beer garden/children's play area at Prince William Inn, Beacon Lane, Dalton, Lancashire WN8 7RU in accordance with the terms of the application, Ref 2024/0224/FUL, subject to the conditions in the attached schedule.

Preliminary Matters

2. During the course of the appeal the revised National Planning Policy Framework (the Framework) was published. The main parties were provided with an opportunity to comment. I have had regard to the 2026 version of the Framework in my decision.
3. The description of development in the heading above has been taken from the planning application form. However, on the appeal form a different wording has been entered. Neither of the main parties has provided written confirmation that a revised description of development has been agreed. Accordingly, I have used the one given on the original application.

Main Issues

4. The main issues are:
 - Whether the proposal would constitute inappropriate development in the Green Belt having regard to the Framework; and
 - The effect of the proposed development upon the host property as a non-designated heritage asset and the character and appearance of the area.

Reasons

Whether the proposal would constitute inappropriate development in the Green Belt

5. The fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open; and that the essential characteristics of Green Belts are their openness and their permanence.
6. The Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Development is considered inappropriate save for a number of exceptions, set out within Policy GB7, which includes the redevelopment of previously developed land, which would not cause substantial harm to the openness of the Green Belt.
7. Policy GN1 of the West Lancashire Local Plan (2013) (the Local Plan) and Supplementary Planning Document Development in the Green Belt (2015) (the SPD) require development within the Green Belt to be assessed against national policy.
8. The appeal site is located within the Green Belt and formed of a former public house including outbuildings, hard surfacing and former beer garden associated with it. The proposal would convert the former public house to a dwelling and erect a new dwelling within the former beer garden.
9. The Framework's definition of previously developed land is land which has been lawfully developed and is or was occupied by a permanent structure and any fixed surface infrastructure associated with it, including the curtilage of the developed land. However, it should not be assumed that the whole of the curtilage should be developed.
10. Whilst the former beer garden is somewhat overgrown, it is well related to the public house, adjacent to the north-east of the main building with no physical separation of the two and as such its functional and visual relationship to the pub remains legible. The beer garden contains a former play area and was likely utilised by customers of the pub, forming a functional part of the commercial premises. As such, on the evidence before me, I see no reason why it should be excluded from the definition of previously developed land. Therefore, the proposal would form the redevelopment of previously developed land.
11. The proposal involves the partial demolition of the former pub and outbuildings and other structures within the appeal site. The volume lost through demolition is effectively replaced by that of the new dwelling, thus mitigating the effect of the proposal on openness. The Council's submissions confirm that the proposal would at the least preserve the existing openness of the Green Belt and that they raise no concerns about the impact on openness. I see no reason to disagree.
12. The Framework states that one of the essential features of the Green Belt is its openness. Openness is the absence of development notwithstanding the degree of visibility of the land in question from the public realm. Openness has both spatial and visual aspects. As such, the proposal would not cause substantial harm to the openness of the Green Belt.
13. The proposal would involve the redevelopment of previously developed land and would not cause substantial harm to the openness of the Green Belt. It would

therefore not be inappropriate development within the Green Belt and there is no need to consider whether the site is grey belt.

14. For the reasons set out above, the appeal site is previously developed land, and the proposed development would meet the requirements of Framework Policy GB7 1.e. and Local Plan GN1. As such, it would not be inappropriate development within the Green Belt.

Character and appearance

15. The area surrounding the site is rural in nature, with dense mature vegetation lining the highway punctuated periodically by the built environment. The buildings within the area primarily comprise small clusters of sizeable, detached, well-proportioned dwellings formed of brick walls and slate roofs. This sporadic pattern of development contributes to the area's rural character.
16. The former public house, despite its current dilapidated state, appears an imposing and impressive building when viewed from Beacon Lane, traditional in its design and materials. The Council identify the building as a non-designated heritage asset with its significance derived from its architecture. There have been a number of unsympathetic additions which detract from its original form and design. A large parking area adjacent to Beacon Lane dramatically increases the built environment of the site, detracting from the rural character of the area.
17. The proposal would remove extensions that detract from the building, better revealing its original historic fabric, form, and architecture, benefitting the significance of the non-designated heritage asset. The parking area would be significantly reduced with part of it replaced with open green space, contributing to the rural character of the area.
18. Whilst the design of the new dwelling located within the former beer garden is contemporary, it would primarily utilise traditional materials and roof forms to reflect that of the surrounding built environment, such as the former pub. The dwelling would comprise multiple elements with different roof levels to replicate the pattern of historic additions and extensions observed in other traditional buildings within the area. This additionally serves to break up the visual bulk of the proposed dwelling in addition to being built into the slope, further reducing its profile.
19. Whilst large, the proposed dwelling would reflect the scale of the converted former pub and many of the other large, detached properties in the area. The proposed dwelling would be set back from the former public house, reflecting the spacious relationship of dwellings within the area. Further, this separation serves to preserve the setting of the non-designated heritage asset, maintaining its dominance when viewed from the street scene.
20. Whilst the existing site is overgrown and limited in development, mature vegetation along the boundary with Long Hayes Lane and Beacon Lane would screen the proposed dwelling, with the former public house obscuring it further from Beacon Lane. As such, the proposed dwelling would preserve the character and appearance of the area and the significance of the non-designated heritage asset through development within its setting.
21. For the above reasons, the proposal would not harm the character and appearance of the area including the significance of the non-designated heritage asset. It would

therefore not conflict with Policy GN3 of the Local Plan which requires development to be of high-quality design and have regard to the historic character of the local landscape.

Other Matters

22. I acknowledge third party comments regarding the continuation of the use of the site as a public house. Nonetheless, the application was accompanied by a Public House Viability Assessment, with the Council assessing this, concluding that the conversion of the public house to a dwelling is acceptable in this respect. I see no reason to disagree.

Conditions

23. I have considered the conditions suggested and I have had regard to the Framework and Planning Practice Guidance. As a result, I have amended some of the suggested conditions for consistency, enforceability, clarity and reasonableness and not imposed others.
24. For certainty, I have set out the timescale for the commencement of development. A condition is also necessary, for certainty and enforceability, requiring that the development is carried out in accordance with the approved plans.
25. A condition is imposed requiring details of surface water drainage in the interests of flood management.
26. A Construction Method Statement is required prior to the commencement of development to ensure that the impact surrounding residents and road safety is minimised.
27. Conditions requiring the development to be carried out in accordance with the Updated Dusk Survey Results report and the Method Statement for Great Crested Newts in the interests of safeguarding protected species. Conditions requiring the provision of bird boxes and hedgehog highways are additionally necessary to safeguard protected species. Additional conditions involving reasonable avoidance measures for mammals and amphibians during the construction period would duplicate much of these requirements and therefore additional conditions in this regard would be unnecessary.
28. A condition requiring a tree protection plan and arboricultural method statement is required prior to the commencement of development to protect trees during the construction phase.
29. Conditions requiring the submission of landscaping and lighting details are required in the interests of the character and appearance of the area and the natural environment.
30. Rhododendron and Himalayan balsam (invasive species) were identified on site by the initial Preliminary Ecological Assessment (PEA), but not by the updated PEA. Given the absence of these in the latest PEA, a condition requiring the submission of a scheme to deal with them would be unnecessary and unreasonable.
31. The Council has also suggested a condition requiring no demolition shall take place until an appropriate bat licence has been obtained. I have no doubt that a mitigation license would not be issued on the basis of the evidence that is before me.

Furthermore, it is not for me to determine whether the legal tests for a license would be met as this would duplicate the function of another regulatory body and would be contrary to the well-established principle that non-planning regimes are assumed to operate effectively. As such, I have not imposed the condition.

32. Given there is an existing paved access to the appeal site, a condition requiring the paving of an access five metres into the site would be unnecessary and unreasonable.

33. The proposal includes a small parking area which the appellant's submission implies would be utilised by the local cricket club. The proposal is acceptable without this requirement and therefore, a condition requiring the carpark and entrance are solely for the use of the cricket club would be unnecessary.

Conclusion

34. For the reasons given above the appeal is allowed.

N Unwin

INSPECTOR

Schedule of Conditions

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development hereby approved shall be carried out in accordance with details shown on the following plans:
 - 4136-22-10 (Location plan);
 - S23011-BF No. 1 (Existing basement floor plan);
 - S23011-GF No. 1 (Existing ground floor plan);
 - S23011-1F No. 1 (Existing first floor plan);
 - S23011-EL No. 1 (Building elevations);
 - 4136-22-01 B (Proposed in conversion plans and elevations);
 - 4136-23-30G (Proposed plans and elevations - planning app);
 - 4136-22-11A (Existing site plan); o4136-23-31B (Proposed site plan - planning app);
 - 4136-24-34 (Proposed site section and street scene);
 - Tree Constraints Plan (Dec 2021);
 - Drainage Plan - 4136-24-35.
- 3) No development above ground level shall take place until a strategy for separate foul and surface water drainage of the development, including any necessary attenuation measures, and timetable for its implementation, has been submitted to and approved in writing by the Local Planning Authority. The surface water drainage strategy must take account of the National standards for sustainable drainage systems (SuDS) (July 2025) or any subsequent replacement standards. The drainage scheme shall be completed in accordance with the approved details and retained and maintained thereafter.
- 4) No development shall take place, including any works of demolition, until a Construction Method Statement has been submitted to, and approved in writing by the local planning authority. The statement shall include measures to control noise, vibration, dust, emissions, and site lighting, and details of wheel washing facilities. The approved Construction Method Statement shall be adhered to throughout the construction period for the development.
- 5) The development shall only be carried out in accordance with all of the recommendations for mitigation and compensation set out in the Updated Dusk Survey Results report.
- 6) The development shall only be carried out in accordance with all of the recommendations for mitigation and compensation set out in the Method Statement for Great Crested Newts.
- 7) No site clearance, preparatory work or development shall take place until a scheme for the protection of the retained trees (the tree protection plan) and the appropriate working methods (the arboricultural method statement) in accordance with paragraphs 5.5 and 6.1 of British Standard BS 5837: Trees in relation to design, demolition and construction - Recommendations (or in an equivalent British Standard if replaced) has been submitted to and approved in writing by the local planning authority. The scheme for the protection of the retained trees shall be carried out as approved.

- 8) Notwithstanding the details shown on the approved drawings, no part of the development shall be occupied until full details of both hard and soft landscaping works have been submitted to and approved in writing by the Local Planning Authority.

The approved landscaping works shall be implemented and completed prior to the occupation of the development.

Any trees or shrubs planted or retained in accordance with this condition which are removed, uprooted, destroyed, die or become severely damaged or become seriously diseased within 5 years of planting shall be replaced within the next planting season by trees or shrubs of similar size and species to those originally required to be planted.

- 9) The development hereby permitted shall not be occupied until details of bird boxes to include number, type and location as well as timing of installation, have been submitted to and approved in writing by the local planning authority. The works shall be carried out in accordance with the approved details and implementation programme and retained thereafter.
- 10) The development hereby permitted shall not be occupied until details of hedgehog highways to include number, type and location have been submitted to and approved in writing by the local planning authority. The works shall be carried out in accordance with the approved details and implementation programme and retained thereafter.
- 11) No external lighting shall be installed at the site until a scheme detailing the proposed lighting has been submitted to and approved in writing by the local planning authority. The submitted details shall include details of the lighting specification, lux levels and a light spillage plan, to minimise any adverse impact of lighting on any wildlife. All external lighting shall be installed and maintained in accordance with the approved details.